

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #02	CCRB Case #: 201510141	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 11/21/2015 7:50 PM	Location of Incident: 805 Prospect Place	18 Mo. SOL 5/21/2017	Precinct: 77
Date/Time CV Reported Sat, 11/21/2015 12:35 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/30/2015 2:17 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alejandro Valderrama	23435	953512	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alejandro Valderrama	Force: PO Alejandro Valderrama used physical force against § 87(2)(b)	A . Complainant Uncooperative

Case Summary

On November 25, 2015, Sgt. Juan Moreno of the 77th Precinct filed this complaint with IAB on behalf of § 87(2)(b) where it received original log number 2015-36169. On November 30, 2015, this case was referred to the CCRB for investigation and was assigned to Inv. Jean Paul Lozada. On November 30, 2015, Inv. Lozada conducted a BADS search and obtained a phone number for § 87(2)(b). Inv. Lozada called this number on the same day and spoke with § 87(2)(b) mother, § 87(2)(b), who provided a mailing address and stated that her son could be reached at her phone number. ‘Please call’ letters were mailed to § 87(2)(b) on November 30, 2015, and December 7, 2015, and were not returned by the United States Postal Service. On December 7, 2015, Inv. Lozada called § 87(2)(b) a second time and she provided a cell phone number for her son. This number was called the same day and a message was left on § 87(2)(b) s voicemail.

On December 11, 2015, Inv. Lozada called § 87(2)(b) s mobile number a second time. § 87(2)(b) answered and stated that he did not want to schedule an interview until he spoke with his criminal attorney. Inv. Lozada called a third time on December 15, 2015, and left a message. On December 18, 2015, Inv. Lozada called a fourth time and scheduled § 87(2)(b) for an interview on December 22, 2015. Inv. Lozada sent an email to § 87(2)(b) to confirm the appointment without complication. On the same day, this case was reassigned to the undersigned investigator and a ‘re-assignment’ email was sent § 87(2)(b) without complication. On the same day, a ‘re-assignment’ letter was mailed to § 87(2)(b) and has not been returned by the United States Postal Service.

On December 22, 2015, § 87(2)(b) missed his interview and a ‘missed appointment’ letter was mailed to his address. This letter was not returned by the United States Postal Service. On the same day, the undersigned called § 87(2)(b) and rescheduled him for an interview on December 28, 2015. § 87(2)(b) did not appear for this interview. On December 29, 2015, a search of the New York City Department of Correction website did not indicate that § 87(2)(b) was incarcerated. It is therefore recommended that this case be closed as **complainant uncooperative**.

Squad: 2

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date